SC-104 Proof of Service

Use this form to serve a **person,** a **business,** or a **public entity.** To learn more about proof of service, read *What Is "Proof of Service"?,* Form SC-104B. To learn more about how to serve a business or entity, read *How to Serve a Business or Public Entity,* Form SC-104C.

To serve a **business,** you must serve **one** of the following people:

- Owner (for a sole proprietorship)
- Partner (for a partnership) or general partner (for a limited partnership)
- Any officer or general manager (corporation or association)
- Any person authorized for service by the business (corporation, association, general partnership, limited partnership)
- Any person authorized for service with the Secretary of State (corporation, association, limited liability company [LLC], limited liability partnership [LLP], limited partnership)

To serve a **public entity,** you must first file a claim with that entity, then serve **one** of the following people:

- Clerk (of a city or county)
- Chief officer or director (of a public agency)
- Any person authorized for service by the entity

Clerk stamps date here when form is filed.

Fill in court name and street address:

Superior Court of California, County of

Fill in case number, case name, hearing date, day, time, and department below:

Case Number:	
Case Name:	
Hearing Date:	
Time:	**Dept.:**

1 a. If you are serving a **person,** write the person's name below:

_____

b. If you are serving a **business** or **entity,** write the name of the business or entity, the person authorized for service, and that person's job title:

_____
Business or Agency Name

_____
Person Authorized for Service Job Title

2 Instructions to Server:

You must be at least 18 years old and **not be named in this case.** Follow these steps:

- Give a copy of all the documents checked in **3** to the person in **1**, ***or***
- Give a copy of all the documents checked in **3** to one of the following people:

a. A competent adult (at least 18) living with, and at the home of the person in **1**, ***or***

b. An adult (at least 18) who seems to be in charge at the usual workplace of the person in **1**, ***or***

c. An adult (at least 18) who seems to be in charge where the person in **1** usually receives mail (but not a U.S. Post Office box), if there is no known physical address for the person in **1**.

and mail a copy of the documents left with one of the adults in a, b, or c above to the person in **1**.

THEN

- Complete and sign this form, and
- Give or mail your completed form to the person who asked you to serve these court papers, ***in time for the form to be filed with the court at least 5 days before the hearing.***

3 I served the person in 1 a copy of the documents checked below:



a. ☐ SC-100, *Plaintiff's Claim and ORDER to Go to Small Claims Court*

b. ☐ SC-120, *Defendant's Claim and ORDER to Go to Small Claims Court*

c. ☐ Order for examination (This form must be personally served. Check the form that was served):

Note: The court can issue a civil arrest warrant if the served party does not come to court only if the order for examination was personally served by a registered process server, sheriff, marshal, or someone appointed by the court.

(1) ☐ SC-134, *Application and Order to Produce Statement of Assets and to Appear for Examination*

(2) ☐ AT-138/EJ-125, *Application and Order for Appearance and Examination*

d. ☐ Other *(specify):* _____

Case name: _____ Case Number: _____

4 Fill out "a" or "b" below:

a. ☐ **Personal Service:** I personally gave copies of the documents checked in 3 to the person in 1
On *(date)*: _____ At *(time)*: _____ ☐ a.m. ☐ p.m.
At this address: _____
City: _____ State: _____ Zip: _____

b. ☐ **Substituted Service:** I personally gave copies of the documents checked in 3 *(a, b, or d)* to *(check one):*
☐ A competent adult (at least 18) at the **home** of, and living with the person in 1 , or
☐ An adult who seems to be in charge where the person in 1 usually **works**, or
☐ An adult who seems to be in charge where the person in 1 usually **receives mail**, or has a private post office box (not a U.S. Post Office box), if there is no known physical address for the person in 1 .

I told that adult, "Please give these court papers to (name of person in 1)."
I did this on *(date):* _____ At *(time):* _____ ☐ a.m. ☐ p.m.
At this address: _____
City: _____ State: _____ Zip: _____
Name or description of the person I gave the papers to:
_____

After serving the court papers, I put copies of the documents listed in 3 in an envelope, sealed the envelope, and put first-class prepaid postage on it. I addressed the envelope to the person in 1 at the address where I left the copies.
I mailed the envelope on *(date):* _____ from *(city, state):* _____
by leaving it *(check one):*
a. ☐ At a U.S. Postal Service mail drop, or
b. ☐ At an office or business mail drop where I know the mail is picked up every day and deposited with the U.S. Postal Service, or
c. ☐ With someone else I asked to mail the documents to the person in 1 , and I have attached that person's completed Form SC-104A.

5 Server's Information

Name: _____ Phone: _____
Address: _____
City: _____ State: _____ Zip: _____
Fee for service: $ _____
If you are a registered process server:
County of registration: _____ Registration number: _____

6 I declare under penalty of perjury under California state law that I am at least 18 years old and not named in this case and that the information above is true and correct.

Date: _____

_____ ▶ _____
Type or print server's name *Server signs here after serving*

For your protection and privacy, please press the Clear This Form button after you have printed the form.

Print this form Save this form Clear this form